

Payment of Wages (Tamil Nadu Amendment) Act, 1959

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State of Tamilnadu- Act

Payment of Wages (Tamil Nadu Amendment) Act, 1959

TAMILNADU

India

Payment of Wages (Tamil Nadu Amendment) Act, 1959

Act 9 of 1959

Published on 9 August 1959

Commenced on 9 August 1959

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Payment of Wages (Tamil Nadu Amendment) Act, 1959

(Tamil Nadu Act

9 of 1959

)

Statement of Objects and Reasons - Payment of Wages (Tamil Nadu Amendment) Act, 1959 (Tamil Nadu Act

9 of 1959

). - One of the recommendations made at the meeting of the State Labour Advisory Board held on 10th October 1959 was that the Payment of Wages Act, 1936 (Central Act IV of 1936) might be extended to all types of employment. The Payment of Wages Act, 1936, has been recently amended by Central Act 68 of 1957, so as to bring construction industry including building operation and construction and maintenance of power and irrigation systems within the preview of the Act. However, the Central Amending Act does not cover motor and other transport undertakings. It is,

therefore, proposed to amend the Payment of Wages Act, 1936, transport undertakings, other than those already covered by that Act. It is also considered necessary that the State Government should have power to extend the provisions of the act to such of the establishments as they may consider necessary from time to time. The bill seeks to achieve the above objects. The Bill also seeks to make amendments necessary consequent on the enactment of Central Act 68 of 1957.

Published in Part IV - A of the Fort St. George Gazette Extraordinary, dated the 10th March 1959.

Received the assent of the President on the 9th August 1959 and published in the Fort St. George Gazette Extraordinary, dated the 19th August 1959.

An Act further to amend the Payment of Wages Act, 1936, in its application to the [State of Tamil Nadu]
[Substituted for the expression 'Province of Madras' by the Tamil Nadu Adaptation of Laws Order, 1970.]

whereas it is expedient further to amend the Payment of Wages Act, 1936 (Central Act IV of 1936), in its application to the [State of Tamil Nadu]

[Substituted for the expression 'Province of Madras' by the Tamil Nadu Adaptation of Laws Order, 1970.]

for the purposes hereinafter appearing;

Be it enacted in the Tenth Year of the Republic of India as follows: -

1.

Short title and extent.

(1)

This Act may be called the Payment of Wages ([Tamil Nadu]

[Substituted for the word 'Madras' by the Tamil Nadu Adaptation of Laws Order, 1969, as amended by the Tamil Nadu Adaptation of Laws (Second Amendment) Order, 1969.]

Amendment) Act, 1959.

(2)

It extends to the whole of the [State of Tamil Nadu]

[Substituted for the expression 'Province of Madras' by the Tamil Nadu Adaptation of Laws Order, 1970.]

2.

Amendment of section 2, Central Act IV of 1936.

- In clause (ii) of the Payment of Wages Act, 1936 (Central Act IV of 1936) (hereinafter referred to as the principal Act), -

(i)

in item (a), after the words "omnibus service", the words "or motor or other transport undertaking" shall be added;

(ii)

after item (g) the following item shall be added, namely: -

"(h) establishment or undertaking which the State Government may, by notification in the Official Gazette, declare to be an industrial establishment for the purposes of this Act".

3.

Amendment of section 7, Central Act IV of 1936.

- Clause (dd) of sub-section (2) of section 7 of the principal Act shall be omitted.

4.

Substitution of new section for section 11-A, Central Act IV of 1936.

- For section 11-A of the principal Act, the following section shall be substituted, namely: -

"11-A. Deductions in respect of house accommodation. - The employer shall make the deductions authorized under clause (d) of sub-section (2) of section 7 from the wages of the employed person and remit the amount so deducted in such manner as the State Government may, by general or special order, specify".

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